

Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(ii)(B)

JEFO No.: FY25-086

Date: March 25, 2025

PR Number: PCCA-25-00131

1. Agency and Contracting Activity.

This Justification for an Exception to Fair Opportunity supports a procurement action to be conducted under the authority of FAR Subpart 16.5 – Indefinite-Delivery Contracts. The procurement action is generated by the Department of Homeland Security (DHS), Cybersecurity and Infrastructure Security Agency (CISA), Chief of the Contracting Office (COCO).

2. Nature and/or description of the **action** being approved.

In support of its mission, the Cybersecurity and Infrastructure Security Agency (CISA) Office of the Chief Information Officer (OCIO) requires the continuation of Cybersecurity Operations Support Services. Core required services include network monitoring and security event analysis, email security monitoring and analysis, computer security incident response and management, vulnerability assessment, security engineering, cyber intelligence support, intrusion analysis, and continuity of operations for Security Operations Center (SOC) services.

The current support ends on March 31, 2025. CISA/COCO intends to award a task order to Leidos, Inc. under General Services Administration (GSA) Alliant 2 Governmentwide Acquisition Contract (GWAC) contract number 47QTCK18D0008 without considering other contract holders pursuant to FAR 16.505(b)(2)(i)(B).

3. A description of the supplies or services required to meet the agency's need (including the estimated value).

The Contractor shall be responsible for identifying, protecting, detecting, responding, and recovering from Information Technology events ensuring that CISA is able to rapidly respond to CISA mission needs. The continued Cybersecurity Operations Support Services are required to maintain CISA Information Security. The period of performance shall be 9 months to include a 3-month base period, one (1) 4-month option period, and one (1) 2-month option period. Services are anticipated to commence on April 1, 2025. The total estimated value is \$ [REDACTED].

4. Identify the exception to fair opportunity and supporting rationale, including a demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the exception cited.

 X FAR 16.505(b)(2)(i)(B). Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

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Rationale:

CISA requires uninterrupted support of its mission essential Cybersecurity Operations Support Services or CISA OCIO Information Security support will cease. The follow-on task order allows the SOC to continue to provide continuity of services that directly support the Cybersecurity mission. CISA is the face and voice of cybersecurity for the federal government, which means the actors trying to infiltrate CISA to exfiltrate our data have the skills and resources of Nation States. The services required are highly specialized because CISA is building out a world class SOC that incorporates commercial technology enriched with specialized data flows and practices to defend CISA from some of the most skilled attackers. Without a specialized workforce, CISA would not be able to detect and respond to actors exploiting previously unknown zero-day attacks against CISA's infrastructure. At this time, only the incumbent contractor, Leidos, Inc., is capable of supporting this highly specialized, short-term requirement. Leidos has been instrumental to OCIO by configuring and maintaining the Cybersecurity Enclave (CSE) which OCIO relies on to monitor and protect CISA IT Systems. The contractor's employees are already cleared to perform and already have the requisite experience and expertise to support the required tasks. There are no other contractors capable of continuing and transitioning CISA's highly specialized support services, and there are currently no Federal staff available to meet this support need.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

Pursuant to FAR 16.505(b)(3), if the service prices were not established at the IDIQ level, then the Contracting Officer will establish prices for the order using the policies and methods in FAR 15.4. The Contracting Officer anticipates a fair and reasonable price will be achieved based on utilization of the rates established by the GSA Alliant 2 GWAC, consideration of historical pricing, and comparison of the labor mix and level of effort with the Independent Government Cost Estimate (IGCE).

6. Any other facts supporting the justification.

None noted.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

Other than Leidos, there are currently no known small or other than small businesses capable of supporting the CISA specific tasks within the term of this requirement. For consistency and because of the nature of this support, CISA fully intends to utilize the forthcoming DHS enterprise vehicle for long term support; however, the DHS effort remains within source selection. While Leidos is currently contracted for SOC support throughout DHS, this task order will be structured in such a way that the current support can be transitioned in a timely, cost-effective manner once the new DHS enterprise vehicle is available to its components.

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At this time, the exception to fair opportunity is necessary to support CISA's mission.

8. DHS CISA intends to post this requirement on www.sam.gov pursuant to FAR 16.505(b)(2)(ii)(D).

9. Technical/Requirements Personnel Certification.

Pursuant to FAR 16.505(b)(2)(ii)(B)(9), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the justification, are accurate and complete.



Technical Representative/COR

3/25/25

Date

10. Contracting Officer Certification

Pursuant to FAR 16.505(b)(2)(ii)(B)(8), I certify that this justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer

3/25/25

Date

11. Approval.

I hereby determine that the circumstance in FAR 16.505(b)(2)(i)(B) applies.



Date: 2025.03.27
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Procuring Activity Advocate for Competition

Date